

SECTION: 1. PARTIES AND PURPOSE

This Master Vendor Agreement is entered into between Apex Innovations Corp ('Client') and Sterling Enterprise Solutions LLC ('Vendor'). The purpose of this agreement is to govern the procurement of enterprise software and technical maintenance services.

SECTION: 2. CONTRACT DURATION

This Agreement shall commence on October 1, 2024 ('Effective Date') and shall remain in full force for an initial term of twenty-four (24) months, unless terminated earlier pursuant to the provisions herein.

SECTION: 3. RESPONSIBILITIES OF THE SUPPLIER

The Vendor/Supplier shall deliver the contracted software modules in compliance with specifications set forth in Exhibit A, maintain 99.9% uptime for cloud services SLA, and provide 24/7 technical support response within 2 hours of critical incident notification.

SECTION: 4. PAYMENT TERMS

The Client agrees to pay undisputed invoices within thirty (30) days of receipt. Late payments shall accrue interest at a rate of 1.5% per month or the maximum rate permitted by law, whichever is lower. All fees are exclusive of applicable sales taxes.

SECTION: 5. TERMINATION NOTICE PERIOD

Either party may terminate this Agreement without cause by providing thirty (30) days written notice to the other party. Upon termination, Client shall pay for all authorized deliverables completed prior to the effective termination date.

SECTION: 6. BREACH AND REMEDIES

In the event of a material breach of this Agreement by either party, the non-breaching party may issue written notice specifying the breach. If the breach is not cured within fifteen (15) days of receipt of notice, the non-breaching party may immediately terminate this Agreement and seek damages.

SECTION: 7. CONFIDENTIALITY OBLIGATIONS

Both parties agree to protect and keep confidential all proprietary technical, business, and financial data disclosed during the term. Confidentiality obligations shall survive termination of this Agreement for a period of five (5) years.

SECTION: 8. RENEWAL CONDITIONS

This Agreement shall automatically renew for successive one (1) year terms unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the then-current term.

SECTION: 9. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles. Any legal proceedings shall be instituted exclusively in the courts located in New Castle County, Delaware.